IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF IOWA
CENTRAL DIVISION

EYAL HANFLING, individually and on behalf of all others similarly situated, Plaintiff, v. GRINNELL COLLEGE, Defendant.	Case No. 4:26-cv-00213-RGE-HCA **BRIEF IN SUPPORT OF MOTION TO DISMISS** **ORAL ARGUMENT REQUESTED**

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A plaintiff "must plead facts that demonstrate, among other things, that she suffered an injury that is 'concrete' and 'real,' not merely 'abstract.'" *Jones*, 124 F.4th at 538 (quoting *Spokeo, Inc. v. Robins*, 578 U.S. 330, 338, 340 (2016)). This injury is usually a "tangible injury (such as the loss of money or personal injury)." *Whitby v. Cerner Corp.*, No. 25-04087-CV-C-BP, 2026 WL 1520742, at *4 (W.D. Mo. Apr. 13, 2026). "Intangible harms may constitute concrete injuries if they bear a 'close relationship to harms traditionally recognized as providing a basis for lawsuits in American courts.'" *Butler*, 2026 WL 883904, at *3 (quoting *TransUnion LLC v. Ramirez*, 594 U.S. 413, 425 (2021)); *Whitby*, 2026 WL 1520742, at *4 (similar)). Courts must "look to the *specific* underlying harm experienced by the plaintiff and compare it, in detail, to a *specific* common-law tort." *Butler*, 2026 WL 883904, at *2 (quoting *Popa v. Microsoft Corp.*, 153 F.4th 784, 790–91 (9th Cir. 2025)).

Where individual internet users allege unauthorized disclosure of web-browsing data, courts typically compare the alleged harms to the common law tort of intrusion upon seclusion. *See, e.g.*, *Jones*, 124 F.4th at 539; *Butler*, 2026 WL 883904, at *3; *Whitby*, 2026 WL 1520742, at *5; *Adams v. PSP Grp., LLC*, 691 F. Supp. 3d 1031, 1040–1042 (E.D. Mo. 2023); *see also, e.g.*, *In re BPS Direct, LLC; Cabela's, LLC Wiretapping Litig.*, 175 F.4th 423, 431–34 (3d Cir. 2026); *Popa*, 53 F.4th at 791; *Cook v. Gamestop, Inc.*, 148 F.4th 153, 160–162 (3d Cir. 2025); *Garcia v. Blackhawk Network, Inc.*, No. 2:25-cv-07550-JLS-SSC, 2026 WL 925028, at *4 (C.D. Cal. Apr. 1, 2026); *Delong v. PHE, Inc.*, No. 24-5212, 2025 WL 2447787, at *3–5 (E.D. Pa. Aug,. 25, 2025); *Andrews v. Prisma Health*, No. 6:23-CV-03153-JDA, 2024 WL 3861384, at *4 (D.S.C. Aug. 16, 2024); *Farst v. AutoZone, Inc.*, 700 F. Supp. 3d 222, 228 (M.D. Pa. 2023). Intrusion upon seclusion

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INTRODUCTION

Plaintiff's claims are foreclosed in their entirety by controlling authority. The Eighth Circuit has held that plaintiffs raising Wiretap Act and other tort claims relating to ordinary web browsing activity, as alleged here, have not suffered an injury-in-fact and cannot establish standing. *See Jones v. Bloomingdales.com, LLC*, 124 F.4th 535, 538–39 (8th Cir. 2024). Nor does Plaintiff state a valid claim for relief. A well-developed body of Wiretap Act caselaw makes clear that website operators such as Grinnell may collect and/or share web-browsing information provided by a website visitor in the course of the communication constituting the web-browsing experience. Such allegations also fail to state a claim under New York statutory law or under the common law.

FACTUAL BACKGROUND[1]

Grinnell is a private, liberal arts college located in Grinnell, Iowa. (Compl. ¶ 2, ECF No. 1.) Grinnell operates a website, http://www.grinnell.edu/, where it provides information to the public about its educational mission and offerings. (Compl. ¶ 3.)

The display of a website upon a user's browser is the product of an exchange of information between the user's computer and the website's server. (*See* Compl. ¶ 21–36.) Visitors to Grinnell's website communicate directly with Grinnell regarding their browsing activity. (Compl. ¶ 39.) On the Internet, the "constant back-and-forth stream of requests and responses between a user[] . . . and a website . . . provide a perfect snapshot of everything a user does (or not do) on a website, when and how they do it, and with what software and hardware." (Compl. ¶ 37.)

Grinnell's website makes certain representations to users regarding the data generated from a user's visit to Grinnell's website. When a user visits Grinnell's website, the website displays a

[1] In describing or referring to the allegations contained within the Complaint, Grinnell does not admit the truth of any such allegations.

banner at the bottom of the screen, referred to by Plaintiff as the "Cookie Banner," that reads:

> We use cookies to enable essential services and functionality on our site, enhance your user experience, and provide better service through personalized content, collect data on how visitors interact with our side, and enable advertising services. To accept the user of cookies and continue on to the site, click "I Agree." For more information about our use of cookies and how to opt out, please refer to our website privacy policy."

(*E.g.*, Compl. ¶ 4.) The "Cookie Banner" then presents two buttons, one labeled "I Agree" and the other labeled "Privacy Policy." (*E.g.*, Compl. ¶ 4.) Selection of the "I Agree" button disables the Cookie Banner. (Compl. ¶ 49.) Selection of the "Privacy Policy" button takes the user to a separate webpage, available at https://www.grinnell.edu/policies/privacy, displaying a Privacy Statement. The Cookie Banner does not force a user to select either of these two buttons. Users may disregard the Cookie Banner and continue to browse Grinnell's website. (*See* Compl. ¶ 12.)

The Privacy Statement contains Grinnell College's Privacy Policy (the "Privacy Policy"). A true and accurate copy of the Privacy Policy, which was last revised on March 25, 2021, is contained within Exhibit A.[2] The Privacy Policy states, in relevant part, as follows:[3]

> If you view our website, apply to Grinnell as a student, employee, or faculty member, enroll at Grinnell, make a donation, complete any online or hardcopy forms, or utilize any of the third-party systems or services that we use, you should be aware that we will collect certain personally identifiable data from you ("Personal Data"). Grinnell respects your privacy and is committed to protecting your Personal Data and keeping it secure. This statement explains how and why we collect Personal Data from or about you, how we use it, when and why we share it

[2] *See, e.g.*, *Zean v. Fairview Health Servs.*, 858 F.3d 520, 527 (8th Cir. 2017) (noting a court may examine a contract at issue when deciding a motion to dismiss and does not have to accept as true a party's interpretation of that contract); *Levelle v. Hearst Props., Inc.*, 764 F. Supp. 3d 817, 826 (S.D. Iowa 2025) ("It is well established that the Court may consider materials outside the pleadings that are 'necessarily embraced by the complaint.'"). The Complaint contains allegations about the contents of the Privacy Policy. (Compl. ¶ 50.)

[3] The text of the Privacy Policy, available at https://www.grinnell.edu/policies/privacy, contains live hyperlinks to other websites as indicated herein and in Exhibit A. Those hyperlinks have been removed for purposes of this filing.

banner at the bottom of the screen, referred to by Plaintiff as the "Cookie Banner," that reads:

> We use cookies to enable essential services and functionality on our site, enhance your user experience, and provide better service through personalized content, collect data on how visitors interact with our side, and enable advertising services. To accept the user of cookies and continue on to the site, click "I Agree." For more information about our use of cookies and how to opt out, please refer to our website privacy policy."

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> If you view our website, apply to Grinnell as a student, employee, or faculty member, enroll at Grinnell, make a donation, complete any online or hardcopy forms, or utilized any of the third-party systems or services that we use, you should be aware that we will collect certain personally identifiable data from you ("Personal Data"). Grinnell respects your privacy and is committed to protecting your Personal Data and keeping it secure. This statement explains how and why we collect Personal Data from or about you, how we use it, when and why we share it with others, how we secure it and what rights and choices you have in relation to your Personal Data.
>
> Cookies: Unless you take steps to browse the internet anonymously, or opt out, Grinnell College, similar to most institutions and organizations on the Internet, tracks web-browsing patterns to inform our understanding of how our website is being used. Generic information is collected through the use of "cookies," which are text files placed on your computer to evaluate usage patterns so that we can improve both content and distribution.

ARGUMENT

I. Plaintiff does not possess Article III standing.

A plaintiff must plead facts that demonstrate, among other things, that she suffered an injury that is "concrete and real, not merely abstract." *Jones*, 125 F.4th at 938 (quoting *Spokeo, Inc. v. Robins*, 578 U.S. 330, 338, 340 (2016)). This injury is most often a "tangible injury (such as the loss of money or personal injury)." *Whitby v. Cerner Corp.*, No. 25-04087-CV-C-BP, 2026 WL 1520742, at *4 (W.D. Mo. Apr. 15, 2026). "Intangible harms may constitute concrete injuries if they bear a close

[2] *See, e.g.*, *Zean v. Fairview Health Servs.*, 858 F.3d 520, 527 (8th Cir. 2017) (noting a court may examine a contract at issue when deciding a motion to dismiss and does not have to accept as true a party's interpretation of that contract); *Leveke v. Hearst Props., Inc.*, 764 F. Supp. 3d 817, 826 (S.D. Iowa 2025) ("It is well established that the Court may consider materials outside the pleadings that are 'necessarily embraced by the complaint.'"). The Complaint contains allegations about the contents of the Privacy Policy. (Compl. ¶ 50.)

[3] The text of the Privacy Policy, available at https://www.grinnell.edu/policies/privacy, contains live hyperlinks to other websites as indicated herein and in Exhibit A. Those hyperlinks have been removed for purposes of this filing.

requires "an intentional intrusion into a matter the plaintiff has a right to expect privacy," in a manner that would be highly offensive to a reasonable person. *E.g.*, *Koeppel v. Spiers*, 808 N.W.2d 177, 181 (Iowa 2011); *Jones*, 124 F.4th at 539 ("Missouri courts view 'the existence of a secret and private subject matter' as an element of this tort." (citation omitted)); *but see Poppell v. Est. of Archibald*, No. 1:19-CV-01403 (AJC), 2020 WL 2749719, at *9 (S.D.N.Y. May 27, 2020) ("New York has consistently refused to recognize a common law right of privacy, and hence there is no cause of action of intrusion upon seclusion under New York law.").

As the cases cited above illustrate, "plaintiffs who fail to specifically allege facts to establish the disclosure of highly sensitive data" typically lack standing to sue defendants under the Wiretap Act or for related torts. *E.g.*, *Butler*, 2026 WL 883904, at *3–4. The Eighth Circuit's controlling opinion in *Jones* identifies the relevant distinctions:

> Jones does not allege, for example, that session-replay technology captured her inputting and then deleting personal information like her social security number, medical history, bank account figures, or credit card information. She doesn't allege that it recorded any of her contact information or even her name. Nor does she allege that it hijacked her camera and watched her in her home as she surfed the web. . . .
>
> She mentions that her communications included things like mouse movements, clicks, [and] keystrokes," but we don't understand how the movements of a cursor or a person's general navigation across a website conveys any information that a customer could reasonably expect to keep private from the website owners themselves. The situation is akin to the commonplace use of a security camera at a brick-and-mortar store to record customers as they shop . . . . But no reasonable customer at a brick-and-mortar store could claim a privacy interest in her general movements and activities in the public parts of that store. We therefore join the ***overwhelming number of district courts*** to hold that plaintiffs lack standing in cases like these where they don't allege the interception of private information.

Jones, 124 F.4th at 539 (emphasis added). The Eighth Circuit cited with approval a dismissal order in *Arndt v. Gov't Emps. Ins. Co.*, 750 F. Supp. 3d 518 (D. Md. 2024), where the district court reasoned: "Plaintiff cannot establish a concrete injury based on Defendant's alleged collection of mere website activity, such as mouse movements, keystrokes and clicks, search terms, or content

viewed by Plaintiff on Defendant's website. Such information does not convey any personal, private, or identifying information." *Id.* at 528 (listing 22 categories of personal data that were not "sufficiently 'intimate or personal' to justify a legitimate expectation of privacy" including name, birthdate, zip code, marital status, details about vehicle and home ownerships, education, spouse's name, email and phone numbers, among others).

Consistent with *Jones*, courts routinely require a plaintiff allege the unauthorized use or disclosure of highly sensitive information, such as personal financial information like a credit card number, or protected health information, to establish standing. *See, e.g.*, *Whitby*, 2026 WL 1520742, at *5–6 (finding that allegations that defendant's use of Google Analytics to track users' IP addresses and browsing behavior were not sufficient to confer standing for Wiretap Act claims where "no actual medical information was conveyed," and following *Jones*); *cf. In re SuperValu, Inc.*, 870 F.3d 763, 769–71 (8th Cir. 2017) (holding that plaintiffs asserting various tort claims against retailer arising from theft of plaintiffs' credit card numbers in data breach failed, without more, to sufficiently allege injury in fact at the pleading stage).

Plaintiff alleges that he browsed Grinnell's website once and that Grinnell employed technology that collected data regarding his browsing activity on Grinnell's website. (Compl. ¶ 19.) Plaintiff's alleged injury derives from his belief that "the substance of [his] communications with [Grinnell's] Website," namely, "the webpages he viewed . . . together with identifiers and

CONCLUSION

For the reasons stated above, the Court should dismiss Plaintiff's Class Action Complaint, ECF No. 1.

Dated: August 11, 2026

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